

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	DIA NO. 98DPHSW004
	)	
RONI LYNN YETMAR-HENRY	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On March 16, 1998, the Iowa Board of Social Work Examiners (Board) denied the application of Roni Lynn Yetmar-Henry (Applicant) for a license to practice social work at the master's level. The Applicant appealed, and a Notice of Hearing was issued on February 11, 1998.

The hearing was held on April 14, 1998 at 3:45 p.m. in the fourth floor conference room, side 1, Lucas State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Bruce Buchanan, L.I.S.W., Chairperson; Richard Matland, L.I.S.W.; and Linda L. Sickels, Public Member. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, served as the presiding officer for the Board. The Applicant appeared in person and was not represented by counsel. The state was represented by Heather Adams, Assistant Attorney General. The hearing was tape recorded. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(1997) and 645 IAC 280.206.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(1997). The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the Notice of Hearing, the testimony of the witness, and the following exhibits:

State Exhibit A:	Iowa Code section 154C.6
State Exhibit B:	Iowa Code section 154C.1
State Exhibit C:	Application for Licensure with attachments.

FINDINGS OF FACT

1. On March 6, 1997, the Applicant filed her application for licensure to practice as a social worker at the master's level. The application was granted, and the Applicant was issued license

number 2058 to practice social work at the master's level on May 19, 1997. On February 3, 1998, the Applicant was notified by the Board that her license to practice at the master's level had been issued in error. Further review of her file indicated that she had not been performing master level social work duties as defined by law as of July 1, 1996. The Applicant was requested to return her license to practice at the master's level to the Board office and to cease holding herself out as a master's level social worker. She was told that upon return of her license, she would be issued a license at the correct level, as a bachelor social worker. (Testimony of Applicant; State Exhibit C)

2. The Applicant returned her license as requested but also requested a formal hearing on the decision to remove her master's level license. The Applicant was issued a license to practice social work at the bachelor's level. (Testimony of Applicant; State Exhibit 3)

3. The Applicant has been employed as a Substance Abuse Counselor for the North Central Alcoholism Research Foundation from November 1995 to the present. This is the job that is relevant to the determination of whether the Applicant was employed performing master's level social work duties as of July 1, 1996.

a) When she was hired for this position, it did not have specific educational requirements. At the present time, however, substance abuse counselors are required to have a bachelor's degree in social work or a related field. The Applicant has a bachelor's degree in Communications/Public Relations.

b) The Applicant did not submit a written job description for her position of Substance Abuse Counselor. On her application, she describes her duties as a substance abuse counselor to include: evaluating needs, provide documentation, counseling, and make appropriate outside referrals and link ups, assist in developing healthy life coping skills and report negligence where children or dependents are concerned.

(Testimony of Applicant; State Exhibit C)

4. The application contains verification of social work experience from two licensed social workers at the master's level. (State Exhibit C)

5. The Applicant was previously employed as a treatment supervisor at Harvest Acres from 1992 to 1995. The Applicant described this position as including supervision of caseloads and other counselors, maintaining counselor licensure standards and quality assurance, providing ongoing clinical support for clients and families as well as facilitating crisis meetings and coordinating

services. The Applicant submitted considerable documentation of the duties and requirements for this position. However, this position was not relevant to the determination of whether the Applicant was employed performing master level social work duties as of July 1, 1996. (Testimony of Applicant; State Exhibit C)

6. The Applicant testified that she diagnoses substance abuse as part of her duties as a substance abuse counselor. She does not make other types of diagnoses and is not familiar with the other axes of the DSM-IV. The Applicant was unable to satisfactorily describe the differences between counselling and therapy, although she maintained that she performed therapy in her role as a substance abuse counselor. On her application, the Applicant lists counseling, not therapy, among her job duties. (Testimony of Applicant)

CONCLUSIONS OF LAW

In 1996, the Iowa legislature passed legislation mandating licensure for social workers in Iowa and specifying requirements for three levels of permanent licensure: bachelor social worker, master social worker, and independent social worker. Iowa Code section 154C.3. Requirements for licensure at the master level include possession of a master's or doctoral degree in social work and an examination. Iowa Code section 154C.3(1)(b)(1997).

However, the legislature also provided transitional or grand-parenting provisions for applicants who have practiced social work for a certain period of time at a certain level. These transition provisions are found at Iowa Code section 154C.6 and allow exemptions from certain license requirements for qualified applicants who submit their applications prior to July 1, 1998. The Applicant has applied for licensure at the master level under these exemption provisions.

Iowa Code section 154C.6(2)(1997) provides, in relevant part:

2. Master social worker. An applicant for a license as a master social worker shall present evidence satisfactory to the board of any of the following:

...
c. That the applicant is employed performing master level social work duties as defined in section 154C.1; subsection 3, paragraph "b", as of July 1, 1996, and has four thousand hours of employment experience in the practice of social work as of July 1, 1998.

Iowa Code section 154C.1(3)(b) provides, in relevant part:

3. "Practice of social work" means the professional activity of licensees which is directed at enhancing or

restoring people's capacity for social functioning, whether impaired by environmental, emotional, or physical factors, with particular attention to the person-in-situation configuration. The social work profession represents a body of knowledge requiring progressively more sophisticated analytic and intervention skills, and includes the application of psychosocial theory methods to individuals, couples, families, groups, and communities. The practice of social work does not include the making of a medical diagnosis, or the treatment of conditions or disorder of biological etiology which involve psychosocial aspects and conditions. The practice of social work for each of the categories of social work licensure includes the following:

a. Bachelor social worker provide psychosocial assessment and intervention through direct contact with clients or referral of clients to other qualified resources for assistance, including but not limited to performance of social histories, problem identification, establishment of goals and monitoring of progress, interviewing techniques, counseling, social work administration, supervision, evaluation, interdisciplinary consultation and collaboration and research of service delivery including development and implementation of organizational policies and procedures in program management.

b. Master social workers are qualified to perform the practice of bachelor social workers and provide psychosocial assessment, diagnosis, and treatment, including but not limited to performance of psychosocial histories, problem identification and evaluation of symptoms and behavior, assessment of psychosocial and behavioral strengths and weaknesses, effects of the environment on behavior, psychosocial therapy with individuals, couples, families, and groups, establishment of treatment goals and monitoring progress, differential treatment planning, and interdisciplinary consultation and collaboration.

The Applicant in this case has provided satisfactory proof of four thousand hours of employment in the practice of social work. The relevant issue before the Board was whether the Applicant was "employed performing master level social work duties as defined in section 154C.1, subsection 3, paragraph "b", as of July 1, 1996." By establishing the transitional provisions for licensure which allow qualified applicants an exemption from the requirements for permanent licensure found at Iowa Code section 154C.3, the legislature has given the Board discretion in reviewing the job duties performed by applicants and determining whether the applicant was, in fact, engaged in master level duties as of July 1, 1996.

The Applicant presented insufficient evidence to establish that she was employed performing master level social work duties as of July 1, 1996, as that term is defined by Iowa Code section 154C.1(3)(b). The Applicant has been employed as a Substance Abuse Counselor from November 1995 to the present. This is the position that is relevant to the determination of whether the Applicant was employed performing master level social work as of July 1, 1996.

While it does appear that the Applicant performs the duties of a bachelor social worker in her present position, the Board is not satisfied that the job duties described by the Applicant constitute master level social work. The Applicant has not submitted a written job description for her current position. Her social work duties were verified by an MSW, and not by an LISW, as required in the Board rules. 645 IAC 280.4(6). In addition, she concedes that when she was hired there were no academic requirements for the position. At the present time, a bachelor's degree in social work or related field is required. The Applicant has a bachelor's degree in Communications/Public Relations. The academic qualifications for this position suggest that it is a bachelor's level position.

The job duties described by the Applicant on her application most closely fit the statutory definition of a bachelor social worker, and not that of a master level social worker. Evaluating needs, providing documentation, counseling, making appropriate outside referrals and link ups, and assisting in developing healthy life coping skills are all bachelor level duties. In her application, the Applicant uses the term counseling to describe her services; at the hearing she maintained that she performs therapy. The statutory definition of master social worker specifically includes psychosocial therapy, while bachelor social workers provide counselling. This is an important distinction between the two levels of licensure. Based on this record, the Board was not satisfied that the Applicant understood the distinctions between counselling and therapy or that she had been performing master level duties as of July 1, 1996.

DECISION AND ORDER

IT IS THEREFORE ORDERED, that the applications for a license to practice social work at the master's level, filed by Roni Lynn Yetmar-Henry, pursuant to the transition provisions found at Iowa Code section 154C.6, is hereby DENIED.

Dated this 30th day of April , 1998.

A handwritten signature in dark ink, appearing to read "Bruce Buchanan", followed by the letters "LISW" in a larger, bold script.

Bruce Buchanan, L.I.S.W.

Chairperson

Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General

Any appeal to the district court from disciplinary action of the board or denial of license shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 280.208. The party who appeals a decision of the board to the district court shall pay the cost of the preparation of a transcript of the administrative hearing for the district court. 645 IAC 280.209.